



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 21, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 15279
(FIFTH REVISION)

EXPIRATION DATE: 2028-10-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: The Regents of the University of Colorado
Boulder, CO
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time transportation in commerce of Division 6.2 materials in special packaging transported by a contract carrier for short distances by motor vehicle (not more than 5 miles). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Subpart C of Part 172 in that the shipping paper requirements are waived, § 172.301(a), (b) and (c) in that the marking requirements are waived, § 173.199(a) (3),(4) and (5) in that cushioning is not required, an alternative packaging is authorized, and markings have been waived and § 178.609 in that testing requirements for packaging are waived.
5. BASIS: This special permit is based on the renewal application of The Regents of the University of Colorado dated October 29, 2024, submitted in accordance with § 107.109.

Tracking Number: 2024114319

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Biological substance, Category B	6.2	UN3373	N/A

7. SAFETY CONTROL MEASURES:a. PACKAGING: As prescribed below.

(1) Inner packaging: Sealed ampoules, screw-capped vials, or other cryo-vials containing not more than 1 mL of biological substances as listed in Paragraph 6. This will serve as primary layer of containment.

(2) Intermediate packaging: Fiberboard boxes containing not more than 96 primary packages placed in a freezer-compatible metal sleeve, wrapped in plastic. Fiberboard boxes should be sufficiently secured to prevent shifting or falling from sleeves during transportation. The sleeves wrapped in plastic will serve as the secondary layer of containment.

(3) Outer packaging: Steel laboratory freezer, either ultracold (below -70 °C operating temperature) or double-walled, liquid-nitrogen cooled. Each freezer may not contain more than 200 fiberboard boxes. Plastic-wrapped sleeves should be sufficiently secured to prevent shifting or falling during transportation. All freezer doors and lids must be securely closed and shrink-wrapped to prevent opening during transport. The freezer serves as the tertiary layer of containment.

(4) The biological substances in the freezers must be kept frozen at all times within the operating temperature range of -70 °C or colder for an ultracold freezer. Liquid-nitrogen cooled freezers must contain sufficient liquid nitrogen to maintain operating temperature for at least twice the estimated travel time.

(5) All freezers must be secured against movement in the transport vehicle.

b. OPERATIONAL CONTROLS:

(1) This special permit authorizes the transport of packages containing biological substance, Category B using a specialized dedicated transport vehicle between research facilities (a distance of 5 miles or less).

(2) Packages must be prepared and packed by trained University of Colorado employees.

(3) The frozen or freeze-dried materials must be delivered to the destination location within 30 minutes of its departure.

(4) Not more than one transport vehicle may be operated at any time.

(5) Not more than eight (8) freezers may be in a transport vehicle.

(6) An itemized list of contents must be securely attached to the outside of each freezer. The name and phone number of a person who is either knowledgeable about the material being shipped and has comprehensive emergency response and incident mitigation information for the material must be included on the itemized list.

(7) Emergency response equipment and procedures must be in place and ready for operation to address loss of refrigeration, delay in transportation or release of a biological substance.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BB